

Ishwar Chandra v. U.P. Power Corporation Limited Thru' its M.D. & Another

Allahabad High Court · Division Bench · 1 August 2016 · 2016 SCC OnLine All 1513 · Writ - C No. 40058 of 2015 · **Writ petition disposed of on the ground of alternative remedy (s.127 appeal), leaving the consumer free to pursue it**

HEADNOTE

Where the very fact in dispute is whether the consumer filed and the licensee considered an objection to the provisional assessment before making the final assessment, that factual controversy cannot be resolved under Article 226, and the consumer must pursue the statutory appeal under Section 127 of the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. On a vigilance raid the load was found enhanced from 2 KW to 8 KW and a provisional assessment (1.1.2015) issued; the consumer said he objected on 27.1.2015 but a final assessment (23.5.2015) and demand (11.6.2015) followed without deciding it, while the licensee asserted no objection was filed. Treating the Act and the Code as a self-contained scheme, the Court declined to adjudicate the factual dispute and disposed of the writ on the ground of the available s.127 appeal.

HOLDING-UNITS

INTERPLAY · EA2003::127

Factual dispute over whether the objection was filed/considered is for the s.127 appeal, not Article 226

QUESTION

Where the parties dispute whether an objection to the provisional assessment was filed and considered before the final assessment, should the writ court adjudicate it or relegate the consumer to the s.127 appeal?

HOLDING

Relegate to the s.127 appeal. Whether the consumer filed an objection and whether it was considered is a disputed question of fact not amenable to Article 226. The Electricity Act, 2003 and the Supply Code, 2005 are a self-contained scheme with a remedy of appeal under s.127 against the final assessment; every contention raised in the writ can be raised in that appeal. The writ was disposed of on the ground of alternative remedy, leaving the consumer free to pursue it. ¶ 6-7

LIMITING FACTS

Load found enhanced 2 KW to 8 KW on raid; provisional assessment 1.1.2015, final assessment 23.5.2015, demand 11.6.2015; consumer claimed an objection dated 27.1.2015 was ignored, licensee said none was filed.

PRINCIPLE TAGS

relegate-to-statutory-remedy A disputed factual challenge to a final s.126 assessment is not entertained in writ jurisdiction; the consumer is relegated to the s.127 appeal. ¶ 6-7

disputed-questions-of-fact-not-adjudicable-under-article-226 Where the licensee and consumer squarely dispute whether an objection was filed/considered, the writ court will not resolve it and directs the statutory appeal. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OBJECTION DATED 27.1.2015 WAS FILED AND WHETHER THE FINAL ASSESSMENT CONSIDERED IT

Disputed fact left to the s.127 appellate authority. ¶ 6-7

